

CHAPTER 30.

An Act to declare the law with respect to a marriage between a man and his deceased wife's sister domiciled in parts of the British Possessions where such a marriage is legal. [4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Legalisation of colonial marriages with deceased wife's sister.

1. For removing doubts, it is hereby declared that where a man has, whether before or after the passing of this Act, married his deceased wife's sister, and at the date of the marriage each of the parties was domiciled in a part of the British Possessions in which at that date such a marriage was legal, the marriage if legal in other respects shall be, and shall be deemed always to have been, legal for all purposes, including the right of succession to real property and to honours and dignities, within the United Kingdom, unless either party to the marriage has subsequently, during the life of the other, but before the passing of this Act, lawfully married another :

Provided that nothing in this Act shall affect any right, interest, or estate to or in any property, dignity, or honour the title to which, whether vested or contingent, and whether in possession, reversion, or remainder, accrued before the passing of this Act, and no claim by the Crown for duties leviable on or with reference to death, and before the passing of this Act due and payable, and no payment, commutation, composition, discharge or settlement of account in respect of any duties leviable on or with reference to death before the passing of this Act duly made or given, shall be prejudicially affected hereby.

Short title.

2. This Act may be cited as the Colonial Marriages (Deceased Wife's Sister) Act, 1906.

CHAPTER 31.

An Act to amend the Local Government (Ireland) Act, 1898, with respect to Bridges. [4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. An urban county district which, before the passing of the Local Government (Ireland) Act, 1898, was a county of a city or a county of a town shall, after the passing of this Act, be deemed to be a county of a city or a county of a town, as the case may be, for the purposes of the Bridges (Ireland) Acts, 1813 to 1875.

Amendment of law regarding counties of cities and counties of towns.

2. This Act may be cited as the Local Government (Ireland) Act (1898) Amendment Act, 1906, and shall be read together with the Local Government (Ireland) Act, 1898, and the Acts amending or extending the same.

Short title.

61 & 62 Vict.
c. 37.

CHAPTER 32.

An Act to consolidate and amend the Enactments relating to injury to live stock by Dogs, and otherwise to amend the Law relating to Dogs. [4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The owner of a dog shall be liable in damages for injury done to any cattle by that dog; and it shall not be necessary for the person seeking such damages to show a previous mischievous propensity in the dog, or the owner's knowledge of such previous propensity, or to show that the injury was attributable to neglect on the part of the owner.

Liability of owner of dog for injury to cattle.

(2) Where any such injury has been done by a dog, the occupier of any house or premises where the dog was kept or permitted to live or remain at the time of the injury shall be presumed to be the owner of the dog, and shall be liable for the injury unless he proves that he was not the owner of the dog at that time :

Provided that where there are more occupiers than one in any house or premises let in separate apartments, or lodgings, or otherwise, the occupier of that particular part of the house or premises in which the dog has been kept or permitted to live or remain at the time of the injury shall be presumed to be the owner of the dog.

(3) If the damages claimed under this section do not exceed five pounds they may be recovered under the Summary Jurisdiction Acts as a civil debt.

(4) Where a dog is proved to have injured cattle or chased sheep, it may be dealt with under section two of the Dogs Act, 1871, as a dangerous dog.

34 & 35 Vict.
c. 56.

2.—(1) The Diseases of Animals Act, 1894, shall have effect as if, amongst the purposes for which the Board of Agriculture

Power of Board of Agriculture to